



CHAPTER lxvi.

An Act for conferring further powers upon the London and North Western Railway Company in relation to their own undertaking and upon that Company in conjunction with the Lancashire and Yorkshire Railway Company and the Great Western Railway Company respectively in relation to their joint undertakings and upon the Shropshire Union Railways and Canal Company in relation to their undertaking and for other purposes. A.D. 1912.
[7th August 1912.]

WHEREAS it is expedient that the London and North Western Railway Company (in this Act called "the Company") should be empowered to make the railways and alterations of railways hereinafter described and to execute the other works and to exercise the other powers in this Act hereinafter respectively mentioned and to acquire for the purposes of the works by this Act authorised and for the general purposes of their undertaking the lands in this Act also mentioned:

And whereas it is expedient that the Company and the Lancashire and Yorkshire Railway Company (in this Act called "the Lancashire Company") should be empowered to construct the works and acquire the lands in this Act mentioned:

And whereas it is expedient that the Company and the Lancashire Company and the mayor aldermen and burgesses of the borough of Preston (in this Act called "the Preston Corporation") should be empowered to enter into and carry into effect agreements with reference to such works and lands and that the Preston Corporation should be authorised to borrow money therefor and contribute towards the cost thereof:

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And whereas it is expedient that the Company and the Great Western Railway Company (in this Act called "the Great Western Company") and the Shropshire Union Railways and Canal Company (in this Act called "the Shropshire Union Company") should be empowered to acquire the lands in this Act mentioned in that behalf:

And whereas plans and sections showing the respective lines and levels of the railways and alterations of railways and other works by this Act authorised to be constructed and plans of the lands by this Act authorised to be acquired and appropriated and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerks of the peace for the several counties within which those works will be constructed and those lands are situate which plans sections and books of reference are in this Act respectively referred to as the deposited plans sections and books of reference:

And whereas it is expedient that the time limited by the London and North Western Railway Act 1907 for the completion of the Railways Nos. 5 and 6 the Croxley Green Branch the Railway at Coventry and the Holywell Railway authorised thereby should be extended as provided by this Act:

And whereas it is expedient that the Company should be authorised to abandon and relinquish the construction of the Holywell Curve authorised by the London and North Western Railway Act 1906:

And whereas it is expedient that further powers should be conferred upon the Company alone and jointly with any other company or companies and upon any joint committee incorporated by Act of Parliament of the Company and any other company or companies or any joint committee so incorporated on which the Company is represented and upon the Cockermouth Keswick and Penrith Railway Company (in this Act referred to as "the Cockermouth Company") with respect to the lease or other disposal of lands acquired by the Company either alone or jointly as aforesaid or any such joint committee or the Cockermouth Company respectively which are not or eventually may not be required for the purposes for which they may have been so acquired:

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And whereas it is expedient that the Company should be empowered to raise additional capital for the purposes of this Act and for the general purposes of their undertaking and to apply their funds to the purposes of this Act and that the Lancashire Company the Great Western Company and the Shropshire Union Company should be empowered to apply their funds to the purposes of this Act in which they are interested: A.D. 1912.

And whereas it is expedient that some of the powers and provisions of existing Acts relating to the Company should be altered amended extended and enlarged and that such further powers should be granted to the Company as are hereinafter mentioned:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited for all purposes as the London and North Western Railway Act 1912. Short title.

2. The following Acts and Parts of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say):— Incorporation of general Acts.

The Lands Clauses Acts:

The Railways Clauses Consolidation Act 1845 and Part I. (relating to construction of a railway) and Part II. (relating to extension of time) of the Railways Clauses Act 1863:

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

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The remedies of creditors of the Company against the shareholders ;

The borrowing of money ;

The conversion of the borrowed money into capital ;

The consolidation of the shares into stock ;

The general meetings of the Company ;

The making of dividends ; and

The giving of notices :

And Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) and Part III.

(relating to debenture stock) of the Companies Clauses

Act 1863 as amended by subsequent Acts.

Interpreta-
tion.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings And

The expression "the railways" or "the railway" means the new railways and alterations of railways by this Act authorised ; and

The expressions "parish clerks" and "clerks of the several parishes" in sections 7 8 and 9 of the Railways Clauses Consolidation Act 1845 shall as regards the administrative county of London mean the town clerks of the metropolitan boroughs and the city of London.

Protection of
gas and
water mains
of local
authorities.

4. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if "local authority" were mentioned in those sections in addition to "company" or "society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated.

Power to
Company to
make rail-
ways &c.

5. Subject to the provisions of this Act the Company may make and maintain in the lines shown on the deposited plans and according to the levels shown on the deposited sections the railways and alterations of railways and works

hereinafter described with all proper stations sidings roads approaches works and conveniences connected therewith and may enter upon take and use such of the lands delineated upon the deposited plans and described in the deposited books of reference relating thereto as may be required for the purposes thereof or in connection therewith or for providing accommodation for persons of the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company. A.D. 1912.

The railways and alterations of railways and works hereinbefore referred to and authorised by this Act are—

A Railway (No. 1) 6 furlongs 4 chains in length commencing in the metropolitan borough of Saint Pancras in the county of London by a junction with the Company's London and Birmingham Railway at a point seven yards or thereabouts south-east of the northern side of the western bridge carrying Gloucester Road over the said railway and terminating in the metropolitan borough of Hampstead by a junction with the Company's said railway at a point one hundred yards or thereabouts east of the eastern end of the north Primrose Hill Tunnel of the Company:

An Alteration (No. 1) 3 furlongs in length of the Company's London and Birmingham Railway to be situate in the metropolitan boroughs of Saint Pancras and Hampstead commencing at a point between the platforms at Chalk Farm Station on that railway one hundred and twenty yards or thereabouts east of the eastern side of the bridge carrying Regent's Park Road over that railway and terminating at the eastern end of the north Primrose Hill Tunnel of the Company:

An Alteration (No. 2) 2 furlongs 4 chains in length of the Company's London and Birmingham Railway to be situate wholly in the metropolitan borough of Hampstead commencing at or near the middle of the western side of the bridge carrying Regent's Park Road over that railway and terminating at the eastern end of the south Primrose Hill Tunnel of the Company:

A Railway (No. 2) 1 mile 3 furlongs 1 chain in length to be situate wholly in the metropolitan borough of

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Hampstead commencing by a junction with the Alteration No. 1 hereinbefore described at a point one hundred and forty-five yards or thereabouts west of the western side of the bridge carrying Regent's Park Road over the Company's London and Birmingham Railway and terminating by a junction with the Company's said railway at a point sixty-three yards or thereabouts west of the bridge carrying Abbey Road over that railway :

A Railway (to be called the "Holywell Curve") 3 furlongs 7·1 chains in length to be situate wholly in the parish of Holywell Rural in the rural district of Holywell in the county of Flint commencing at a point fifteen yards or thereabouts south-east of the eastern end of the station buildings on the down platform at Holywell Station on the Company's Chester and Holyhead Railway and terminating by a junction with the Holywell Railway authorised by the London and North Western Railway Act 1907 now in course of construction at its point of commencement.

Tolls rates
and charges.

6. The Company may demand and take for the use of the railways (other than the Holywell Curve) and for the conveyance thereover of passengers and parcels by passenger train the tolls rates and charges authorised by the London and North Western Railway (Consolidation) Act 1846 and for the conveyance thereover of the merchandise (including perishable merchandise by passenger train) specified in the London and North Western Railway Company (Rates and Charges) Order Confirmation Act 1891 the Company may demand and take the rates and charges by that Act authorised in respect of the railways not therein specially mentioned :

The Company may demand and take for the use of the Holywell Curve and for the conveyance thereover of passengers and parcels by passenger train the tolls rates and charges authorised by the Chester and Holyhead Railway Act 1844 and for the conveyance thereover of the merchandise (including perishable merchandise by passenger train) specified in the London and North Western Railway Company (Rates and Charges) Order Confirmation Act 1891 the Company may demand and take the rates and charges by that Act authorised in respect of the Chester and Holyhead Railway :

Provided that the maximum fares to be charged by the Company for the conveyance of passengers upon the railways

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including every expense incidental to such conveyance shall not exceed the following (that is to say):— A.D. 1912.
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For every passenger conveyed in a first-class carriage
 threepence per mile;

For every passenger conveyed in a second-class carriage
 twopence per mile;

For every passenger conveyed in a third-class carriage one
 penny per mile;

For every passenger conveyed on the railways for a less
 distance than three miles the Company may charge as
 for three miles and every fraction of a mile beyond three
 miles or any greater number of miles shall be deemed
 a mile.

7. Every passenger travelling upon the railways may take with him his ordinary luggage not exceeding one hundred and fifty pounds in weight for first-class passengers one hundred and twenty pounds in weight for second-class passengers and one hundred pounds in weight for third-class passengers without any charge being made for the carriage thereof. Passengers' luggage.

8. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried over the railway by a bridge or bridges or the immediate approaches thereto except so far as the level of such road highway or approaches is permanently altered so as to increase the gradient. Company not liable to re-pair surface of road level of which is not permanently altered.

9. If the Holywell Curve is not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Period for completion of railway.

10. If the Company fail within the period limited by this Act to complete the Holywell Curve the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the said railway is completed and opened for the public conveyance of passengers or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the said railway and the said penalty may be applied for by any landowner or other Penalty imposed unless railway opened within time limited.

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A.D. 1912. person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854 Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided :

But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company were prevented from completing or opening the said railway by unforeseen accident or circumstances beyond their control Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Application
of penalty.

11. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the Holywell Curve or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act for the purposes of the said railway and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit If no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the said railway or any part thereof has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and

subject to such application shall be repaid or retransferred to the Company. A.D. 1912.

12. For the protection of the Metropolitan Water Board the provisions of subsections (3) (4) (5) and (6) of section 27 (For protection of Metropolitan Water Board) of the London and North Western Railway Act 1907 shall extend and apply to and in relation to the execution of any works by this Act authorised. For protection of Metropolitan Water Board.

13. For the protection of the Gas Light and Coke Company the provisions of section 43 (For protection of Gas Light and Coke Company) of the London and North Western Railway Act 1902 shall extend and apply to and in relation to the execution of any works under the powers of this Act within the limits of supply of that company. For protection of Gas Light and Coke Company.

14. For the protection of the provost and college of Eton (in this section called "the college") the following provisions shall unless otherwise agreed in writing between the Company and the college apply and have effect:— For protection of Eton College.

(1) In this section the expression "the estate" shall mean all lands and hereditaments comprising the Chalcot Estate in the metropolitan boroughs of Hampstead and Saint Pancras respectively now belonging to or vested in the college:

(2) Notwithstanding anything contained in this Act the Company shall if required by the college purchase all their estate and interest of and in the lands and premises numbered severally on the deposited plans 39 40 41 42 43 44 45 and 48:

(3) Nothing in this Act contained shall authorise the Company for the purpose of constructing the railways in tunnel to enter upon take or use the surface of any street or road on the estate but subject to the provisions of this Act the Company may for the purposes of constructing the railways in tunnel acquire from the college so much of the subsoil lying at a depth of not less than forty feet from the surface of any street road or footway on the estate shown on the deposited plans and described in the deposited books of reference as shall be necessary for the purposes aforesaid:

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- (4) The Company shall keep all existing buildings upon any part of the estate purchased by them in proper maintenance and repair in accordance in all respects with the covenants stipulations and conditions contained in the several leases relating thereto prior to the said purchase by the Company and the Company shall not occupy or permit the occupation of any such building otherwise than in accordance with and subject to the said covenants stipulations and conditions Provided that the provisions of this subsection shall not apply to any of the said buildings which the Company may wholly pull down or remove :
- (5) The Company shall before pulling down and removing any building upon any part of the estate purchased by them erect and maintain round such building during the execution of the work a fence or hoarding six feet in height to the reasonable satisfaction of the surveyor to the college (in this section called "the surveyor") :
- (6) The Company shall not erect any buildings other than railway buildings upon any part of the estate acquired by the Company or use any buildings so erected upon such part of the said estate or permit any such buildings to be erected or used otherwise than in accordance with and subject to the general regulations and conditions applying for the time being to new or existing buildings on the part of the estate not acquired by the Company :
- (7) If the Company shall not erect any buildings upon any part of the estate acquired by them they shall erect and thereafter maintain a panelled brick wall not less than six feet high between the lands so acquired and any part of the estate adjoining thereto or the street as the case may be and the Company shall be at liberty at any time to make such openings in the said wall abutting on the street as may be necessary to give access to any such land provided that if the Company erect any building on such land they may be at liberty to remove any wall so erected :
- (8) The Company shall not affix or exhibit or permit to be affixed or exhibited any placard or advertisement

upon the exterior of any boundary wall between the land of the Company and the estate or the street as the case may be: A.D. 1912.

- (9) The Company shall submit to the college for their reasonable approval plans sections and details of all buildings other than railway buildings and boundary walls to be erected by the Company on any part of the estate, purchased by the Company and no such building shall be erected by the Company until the college shall have approved of such plans sections and details:
- (10) All buildings other than railway buildings and boundary walls to be erected by the Company under this section shall be erected to the reasonable satisfaction of the surveyor:
- (11) The Company shall not erect on any part of the land purchased by them from the estate any locomotive shed or mineral or goods station or depôt or workmen's dwellings:
- (12) The Company shall not where any house or building on the estate shall have been wholly or in part demolished by them leave any adjoining structures or any portion of a partly demolished structure in an unsightly condition for any longer period than is reasonably necessary:
- (13) Any dispute or difference arising between the Company and the college with regard to any of the provisions contained in this section otherwise than in regard to the purchase price or compensation to be paid by the Company to the college in respect of any part of the estate taken or damaged by the Company shall be referred to and determined by an arbitrator to be agreed upon between the Company and the college and in default of agreement to be appointed on the application of either party by the President of the Surveyors' Institution and the Arbitration Act 1889 shall apply to the reference.

15. For the protection of the Regent's Canal and Dock Company (in this section referred to as "the canal company")

For protec-
tion of
Regent's

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A.D. 1912. the following provisions shall have effect unless otherwise agreed
Canal and between the Company and the canal company:—
Dock Com-
pany.

(1) In constructing Railway No. 1 by this Act authorised where the same will pass under the Regent's Canal of the canal company the Company shall not deviate upwards from the levels shown on the deposited sections so that any part of the railway or works shall be less than twelve feet below the surface level of the water in the said canal at the point of crossing:

(2) Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not purchase or acquire any part of the said canal or of the works connected therewith but the Company may purchase and the canal company shall sell to the Company a right or easement of constructing and using Railway No. 1 in accordance with the provisions of this Act under the said canal and works and the consideration to be paid by the Company for such easement or right shall unless otherwise agreed be determined in the manner provided by this Act for the purchase and taking of lands otherwise than by agreement:

(3) The said railway where it crosses under the said canal shall be constructed so that no injury shall be caused to the said canal and in case during the progress or after completion of the said works any damage shall be caused to the said canal or to the towing path or other works of the canal company the Company shall pay to the canal company full compensation for all such damage.

For protec-
tion of
London
County
Council.

16. The following provisions shall unless otherwise agreed have effect for the protection of the London County Council (in this section called "the council") (that is to say):—

(1) Notwithstanding anything contained in this Act sub-sections (1) (2) (6) (9) and (12) of section 36 and section 37 of the London and North Western Railway Act 1907 are incorporated with and form part of this Act and shall extend and apply to the lands which the Company are by this Act authorised to acquire and to any works matters or things by this Act

authorised as fully and effectually to all intents and purposes as if those provisions had been repeated and expressly re-enacted in this Act with reference thereto and the expression "the underground railways" where used in those sections shall be deemed to mean the railways by this Act authorised: A.D. 1912.

- (2) Nothing contained in this Act or shown on the deposited plans shall in any way vary prejudice or affect the provisions of subsections (3) and (10) of section 36 of the London and North Western Railway Act 1907 :
- (3) Notwithstanding anything in this Act or shown on the deposited plans all bridges constructed reconstructed or altered by the Company for carrying any road or street in the administrative county of London over the railways shall be constructed reconstructed or altered so as not to lessen the present clear width of such road or street including the footway or footways and in no case shall any such bridge be of less width between the parapets thereof than the width hereinafter mentioned measured on the square (that is to say) :—

Parish.		Situation of Bridge.	Width.
Saint Pancras	-	Bridge carrying Regent's Park Road over the railways.	40 feet.
Hampstead	-	Bridge carrying Abbey Road over the railways.	40 feet.

Every such bridge shall be so protected or fenced as to prevent as far as may be reasonably practicable the escape of steam smoke or other offensive effluvia into any such road or street :

- (4) If the Company acquire the lands in the metropolitan borough of Hampstead numbered 114 to 124 inclusive on the deposited plans or any part of such lands and pull down the buildings standing thereon they shall forthwith give notice thereof to the council and they shall if so required by the council within twelve months of the receipt of such notice sell to the council for the purpose of widening Belsize Road the whole or any part of the lands shown by a red colour

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on the plan which has been signed in duplicate by the Right Honourable the Earl of Donoughmore the Chairman of the Committee of the House of Lords to which the Bill for this Act was referred (one copy of which plan has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords) and the council shall pay to the Company in respect of any lands so sold such amount as failing agreement shall be determined by a surveyor to be appointed on the application of either party by the President of the Surveyors' Institution:

- (5) If during and by the construction of the railways and works any part of the property of the council or any of the works or conveniences connected therewith shall be injured or damaged such injury or damage shall be forthwith made good by the Company at their own expense or in the event of their failing so to do the council may make good the same and recover the costs thereof against the Company.

For protec-
tion of Saint
Pancras
Borough
Council.

17. For the protection of the council of the metropolitan borough of Saint Pancras (in this section called "the council") the following provisions shall have effect unless otherwise agreed in writing between the council and the Company (that is to say):—

- (1) Where any of the intended works to be done under or by virtue of this Act shall or may pass over under or by the side of or so as to interfere with any sewer drain watercourse or work in connection therewith under the jurisdiction or control of the council or with any sewers or works to be made or executed by the council (which intended works are in this section referred to as "the railway works") the Company shall not commence such railway works until they shall have given to the council twenty-one days' previous notice in writing of their intention to commence the same by leaving such notice at the principal office of the council with a plan and section showing the course and inclination thereof and other necessary particulars relating thereto and until the council shall have signified their approval of the

same unless the council do not signify their approval A.D. 1912.
disapproval or other directions within twenty-one days
after service of the said plan section and particulars
as aforesaid and the Company shall comply with and
conform to all reasonable orders directions and regu-
lations of the council in the execution of the said
railway works and shall provide by new altered or
substituted works in such manner as the council shall
reasonably require for the proper protection of and
for preventing injury or impediment to the sewers and
works in connection therewith hereinbefore referred
to by reason of the said intended railway works and
shall save harmless the council against all and every
the expense to be occasioned thereby and all such
new altered or substituted works shall be done by or
under the direction superintendence and control of
the engineer of the council at the costs charges and
expenses in all respects of the Company and all
reasonable costs charges and expenses which the
council may be put to by reason of such railway
works whether in the execution of such new altered or
substituted works the preparation of plans or designs
superintendence or otherwise shall be paid to the
council by the Company on demand and when any
new altered or substituted works as aforesaid shall
be completed by or at the costs charges or expenses
of the Company under the provisions of this Act the
same shall thereafter be as fully and completely
under the direction jurisdiction and control of the
council respectively as any sewers or works now or
hereafter may be:

- (2) If any difference arise between the Company and the council touching anything to be done or not to be done or any moneys to be paid under the provisions of this section such difference shall be settled by an engineer to be appointed (unless otherwise agreed upon) upon the application of either of the parties in difference by the President of the Institution of Civil Engineers in accordance with the provisions of the Arbitration Act 1889:
- (3) The Company shall from time to time pay to the council all rates leviable by or to be payable to them upon

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the respective assessments of any lands or property shown upon the deposited plans or a proportion of such rates respectively from the time such lands or property respectively shall be acquired by the Company until the Company's works are completed and liable to be assessed at such rates and the amount of such rates payable by the Company shall be computed according to the assessments of such lands or property in the rate made in the month of April one thousand nine hundred and twelve notwithstanding that the buildings thereon or forming part thereof may have been taken down. Provided that this provision shall not apply in any case in which such lands or property although some interest therein may have been acquired by the Company remain in the occupation of some person liable to be rated in respect of such occupation.

For protection of
Hampstead
Borough
Council.

18. Notwithstanding anything contained in this Act the following provisions for the protection and benefit of the mayor aldermen and councillors of the metropolitan borough of Hampstead (in this section called "the council") shall except so far as may be otherwise agreed in writing between the council and the Company apply and have effect (that is to say):—

(1) (A) Before commencing any works authorised by this Act except where the same may be in tunnel in or under any street in or under which any sewer or drain of the council or any electric main pipe conduit wire or other work (in this section called "electric apparatus") of the council is situate the Company shall deliver to the council for their reasonable approval plans sections and particulars of the works so proposed to be executed describing the proposed manner of executing the same and such plans sections and particulars shall be delivered to the council at least fourteen days before the commencement of any such work;

(B) If it shall be necessary in the execution of the works authorised by this Act to alter any such sewer or drain or any of such electric apparatus or to support the same or to substitute temporarily or otherwise other sewers drains or electric apparatus or to lay or place under any sewer drain or electric apparatus cement

concrete or other like substance such alterations or other operations shall be carried out by the council and the reasonable expense incurred by them in so doing shall be repaid to them by the Company;

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- (c) In the event of such plans sections and particulars so delivered to the council as aforesaid not being objected to within fourteen days the said works shall be executed in accordance therewith;
 - (d) In addition to any other notices which they are required to give the Company shall not less than thirty-six hours and not more than seventy-two hours before commencing any works whereby any sewer drain or electric apparatus of the council may be interfered with or affected give to the council notice of their intention to commence any part of such works stating to what part of the works the notice refers:
- (2) If by reason of the exercise of any of the powers of this Act the cost of the maintenance of any existing sewer drain electric apparatus or other works of the council shall be increased the Company shall bear the extra cost of such maintenance rendered necessary by the existence of the Company's works such extra cost in case of difference to be determined by arbitration and the Company shall afford every reasonable facility for the maintenance of any such sewer drain electric apparatus or other works by the council:
- (3) The bridges carrying Regent's Park Road Loudoun Road and Abbey Road in the borough of Hampstead (in this section called "the borough") over the works by this Act authorised shall be constructed and maintained by the Company in such manner as at all times to support not only the ordinary traffic but also exceptional traffic lawfully using the roads and the Company shall indemnify and make good to the council all costs and expenses which the council may reasonably incur or be put to in making good the surface of such streets by reason of any defect or insufficiency of strength in such tunnel or other work or in neglecting to properly and efficiently maintain the same as aforesaid:

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- (4) The Company shall not deposit any soil subsoil or materials anywhere within the borough so as to cause any nuisance or obstruction to any person using the streets roads or footways within the borough :
- (5) The Company shall not permit or suffer any cart waggon or other vehicle to carry any soil excavated in the construction of the works authorised by this Act through the public streets within the borough except in carts or waggons so constructed and managed as to prevent as far as reasonably practicable any of such soil dropping therefrom :
- (6) It shall be lawful for the council or their engineer at all times during the construction or repair of the works authorised by this Act under or affecting Regent's Park Road Loudoun Road or Abbey Road to have access to such works at all reasonable times :
- (7) If any difference shall arise with respect to any matter under the foregoing provisions of this section between the Company and the council or their respective engineers or concerning any plans sections or particulars to be delivered to the council under the foregoing provisions of this section the matter in difference shall be referred to and settled by an engineer agreed between the parties or appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference :
- (8) The Company shall from time to time pay to the council all rates leviable by or payable to them upon the respective assessments of any lands or property in the borough shown upon the deposited plans or a proportion of such rates respectively from the time such lands or property respectively shall be acquired by the Company until the Company's works are completed and liable to be assessed to such rates and the amount of such rates payable by the Company shall be computed according to the assessments of such lands or property in the rate made in the month of April one thousand nine hundred and twelve notwithstanding that the buildings thereon

or forming part thereof may have been taken down A.D. 1912.
Provided that this provision shall not apply in any
case in which such lands or property although some
interest therein may have been acquired by the
Company remain in the occupation of some person
liable to be rated in respect of such occupation.

19. The following provisions for the protection of the Great Central Railway Company (in this section referred to as "the Great Central Company") shall unless otherwise agreed apply and have effect:—

For protec-
tion of Great
Central Rail-
way Com-
pany.

- (1) Notwithstanding anything shown upon the deposited plans and sections or contained in this Act the Company shall not without the consent in writing of the Great Central Company under their common seal purchase or take any lands or property of the Great Central Company but the Company may purchase and take and the Great Central Company may and shall sell and grant accordingly such an easement or right of using the same as shall be necessary for the purpose of constructing using and maintaining Railway No. 2 by this Act authorised so far as the same is by this Act to be constructed on or across the lands or property of the Great Central Company:
- (2) The consideration to be paid for any easement or right to be acquired by the Company under the preceding subsection shall in case of dispute be determined in manner provided by the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and for the purpose of any such determination the acquisition of such easement or right shall be deemed a taking of lands within the meaning of section 6 of the Railways Clauses Consolidation Act 1845:
- (3) The Company shall twenty-eight days before they commence the construction of such part or parts of Railway No. 2 by this Act authorised as shall or may pass under the railway and works of the Great Central Company or which may in any way affect the same furnish to the Great Central Company proper and sufficient plans sections and specifications of the works proposed to be made by the Company

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under the said railway or other works or which may in any way affect the same and such plans sections and specifications shall be settled and agreed upon between the respective engineers of the Company and the Great Central Company or in the event of the engineer of the Great Central Company neglecting or refusing to approve the said plans sections and specifications within twenty-eight days or in case of their failing to agree or of any difference arising between them the same shall be settled and determined by an arbitrator to be appointed on the application of the Company or the Great Central Company as hereinafter provided and such works shall be carried into effect in accordance with this section and in accordance with such agreement or determination and under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer of the Great Central Company and at the costs charges and expenses in all respects of the Company and when commenced shall be proceeded with with all reasonable dispatch The engineer of the Great Central Company and his assistants shall at all reasonable times during construction have free access to the said works and every facility shall be afforded to him or his assistants for inspecting them and every reasonable notice which they may give touching any defect shall immediately or as soon as practicable be complied with by the Company:

- (4) The said Railway No. 2 shall be carried under the railway of the Great Central Company by means of a bridge:
- (5) The Company shall not in constructing Railway No. 2 deviate from the centre line and levels shown on the deposited plans and sections so far as the same is across or may in any way affect the property of the Great Central Company without the consent of the engineer of the Great Central Company which consent shall not be unreasonably withheld:
- (6) If in the opinion of the engineer of the Great Central Company the construction of the said Railway No. 2

under or in any way affecting the property of the Great Central Company will weaken the foundations or structures of the existing tunnel bridges retaining walls or other works of that company the Company shall before commencing or during the construction of the said Railway No. 2 if required by the engineer of the Great Central Company securely underpin or strengthen to his reasonable satisfaction at the expense in all things of the Company so much of the foundations or structures of the existing bridges tunnel retaining walls and other works and execute such other protective works as may be reasonably necessary to ensure the stability of the railway and works of the Great Central Company Provided that such protective works may be carried out by the Great Central Company at the expense in all things of the Company if so decided by the engineer of the Great Central Company and if any difference shall arise between the engineer of the Company and the engineer of the Great Central Company as to the necessity for or the extent of such underpinning strengthening or other protective work the same shall be determined by an arbitrator to be appointed as hereinafter provided: A.D. 1912.

- (7) The bridge carrying the railway and works of the Great Central Company over the said Railway No. 2 shall be constructed so that there shall be a clear space over the whole of the area of the said bridge of not less than two feet between the upper surface of the rails of the Great Central Railway and the top of the said bridge :
- (8) The Company shall take all reasonable precautions in the execution of their works to prevent any interference with the free and uninterrupted and safe use in the ordinary manner and at the ordinary rate of speed of the railway and works of the Great Central Company :
- (9) The Company shall bear and on demand pay to the Great Central Company the expense of the employment by the Great Central Company of a sufficient

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number of inspectors watchmen and signalmen to be appointed by that company for watching lighting and signalling the same with reference to and during the execution of the said Railway No. 2 and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts and defaults of the Company or their contractors or any person in the employ of the Company or of their contractors with reference thereto or otherwise and if by reason of the construction of the railways and works by this Act authorised it shall become necessary to add to or alter the signal or signals upon the railway of the Great Central Company the same shall be so added to or altered by the Great Central Company and the reasonable expense thereof shall be repaid to that company by the Company:

- (10) If by reason of the execution of any of the works or any proceedings of the Company or the failure of any such works or any act or omission of the Company or of their contractors or of any person in the employ of the Company or their contractors any railway or other work of the Great Central Company shall be injured or damaged such injury or damage shall be forthwith made good by the Company at their own expense or in the event of their failing so to do then the Great Central Company may make good the same and recover the expense thereof against the Company and if any interruption shall be occasioned to the traffic of or upon any such railway of the Great Central Company by reason of any of the matters aforesaid the Company shall pay to the Great Central Company all costs and expenses to which that company may be put as well as full compensation:
- (11) The Company shall at all times maintain the bridge by which their Railway No. 2 is carried under the railway and works of the Great Central Company in substantial repair and in good order and condition to the reasonable satisfaction in all respects of the engineer of the Great Central Company and if and

whenever the Company fail so to do the Great Central Company may make and do in and upon as well the lands of the Company as their own lands all such works and things as the Great Central Company reasonably think requisite in that behalf and the reasonable amount of such their expenditure shall be repaid to them by the Company :

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(12) If at any time hereafter the Great Central Company shall widen their existing railway the Company shall afford all reasonable and proper facilities for that purpose and shall from time to time bear and pay all additional expenditure which may be occasioned by the works necessary for carrying such widening over the said Railway No. 2 :

(13) Any dispute or difference which may arise between the Great Central Company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the President of the Institution of Civil Engineers on the application of the Great Central Company or the Company and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

20. The provisions for the protection of the Metropolitan Railway Company contained in section 32 of the London and North Western Railway Act 1907 so far as they apply to Railway No. 3 by that Act authorised shall extend and apply to Railway No. 2 by this Act authorised in as full and complete a manner as if such provisions were re-enacted in this Act with reference to the said Railway No. 2.

For protection of Metropolitan Railway Company.

21. Subject to the provisions of this Act the Company may make the works hereinafter described and may exercise the powers hereinafter mentioned (so far as the same are shown on the deposited plans and sections in the lines and in accordance with the levels shown thereon) and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference relating thereto as may be required for those purposes or for providing

Power to make further works.

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A.D. 1912. accommodation for persons of the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company (that is to say):—

. In the county of Warwick—

In the parish of Saint Michael without Coventry in the rural district of Coventry and in the county borough of Coventry they may stop up the footpath leading from Folly Lane to Charterhouse Mills for a distance of three hundred yards or thereabouts from Folly Lane measured along the said footpath and may divert the same in a north-easterly direction;

In the county borough of Coventry they may make a new footpath between the portion of Humber Avenue lying to the east of the railway at Coventry authorised by the London and North Western Railway Act 1907 now in course of construction and the portion of the said avenue lying to the west of the said railway and may carry the same over the said railway by means of a footbridge and may stop up and discontinue all rights of way over the site of the footpath which formerly led from Folly Lane to Saint George's Road;

In the parish of Foleshill in the rural district of Foleshill they may stop up and discontinue the footpath leading from the towing path of the Coventry Canal to Spring Road for a distance of two hundred and fifty yards or thereabouts measured in a northerly direction from the said towing path and also the footpath leading from the said footpath to Stoney Stanton Road near Court House Farm for a distance of twenty yards or thereabouts measured in a south-easterly direction from the junction of the said footpaths and in substitution therefor they may make a new footpath between a point in the said first-mentioned footpath forty yards or thereabouts south of the south end of Spring Road and a point in Stoney Stanton Road one hundred and thirty yards or thereabouts east of the Coventry Canal;

In the parish of Berkswell in the rural district of Meriden they may discontinue all rights of footway over the level crossing of the Company's London and Birmingham Railway at Berkswell Station and may carry the footpath over the railway by means of a footbridge:

In the county of Stafford—

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In the urban district of Heathtown they may stop up and discontinue so much of the footpath from Nine Elms to Park Lane as crosses the Company's Grand Junction Railway on the level three hundred and thirty yards or thereabouts north-west of Cannock Road and may carry the said footpath over the said railway by means of a footbridge;

In the parish of Hammerwich in the rural district of Lichfield they may stop up and discontinue so much of the footpath leading from Hammerwich to Hammerwich Station as crosses the Company's South Staffordshire Railway and property on the level at the said station and may carry the same over the said railway by means of a footbridge:

In the county of Lancaster—

In the parish of Rainhill in the rural district of Whiston and in the county borough of Saint Helens they may stop up and discontinue so much of the footpath leading from Rainhill to Micklehead Green as crosses the Company's Liverpool and Manchester Railway on the level five hundred and sixty yards or thereabouts east of the level crossing at Rainhill Station and may carry the same over the said railway by means of a footbridge which shall be maintained by the Company:

In the county of Flint—

In the parish of West Saltney in the rural district of Hawarden they may stop up and discontinue so much of the footpaths leading from Shotwick to Shotton as cross the Company's Chester and Holyhead Railway on the level at points respectively one hundred yards or thereabouts south-east and two hundred and ten yards or thereabouts north-west of Shotton Station and may carry the same over the said railway by means of footbridges;

In the urban district of Rhyl they may stop up and discontinue so much of the footpath leading to Rhuddlan-Cop as crosses the Company's Chester and Holyhead Railway on the level at Castle Road Rhyl and may carry the same over the said railway by means of a footbridge:

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In the county of Denbigh—

In the urban district of Colwyn Bay and Colwyn they may stop up and discontinue so much of the footpath as crosses the Company's Chester and Holyhead Railway on the level at Glan-y-don as lies between the Promenade and a point on the said footpath twenty-five yards or thereabouts south of the said level crossing and may divert the said portion of footpath in an easterly direction and carry the same under the said railway by means of the existing subway:

In the county of Anglesey—

In the parish of Llanfihangel Esceifiog in the rural district of Aethwy they may discontinue all rights of footway over the level crossing on the Company's Chester and Holyhead Railway at Gaerwen Station and may carry the footpath over the said railway by means of a footbridge.

Power to acquire additional lands &c.

22. Subject to the provisions of this Act and in addition to the other lands which the Company are by this Act authorised to acquire the Company may enter upon take use and appropriate for the purposes of their undertaking and for providing accommodation for persons of the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company the lands hereinafter described or referred to delineated on the deposited plans and described in the deposited books of reference relating thereto and may make the works and exercise the powers hereinafter mentioned and so far as the same are shown on the deposited plans and sections in the lines and in accordance with the levels shown thereon (that is to say):—

In the county of Hertford—

Certain lands in the parish of King's Langley in the rural district of Hemel Hempsted adjoining the Company's, London and Birmingham Railway on the north-east side thereof and extending between points respectively twenty-eight yards or thereabouts and five hundred and twenty-five yards or thereabouts south-east of the southern corner of Saint Mary's Churchyard Apsley End:

In the county of Buckingham—

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Certain lands in the urban district of Bletchley (formerly Fenny Stratford) adjoining the Company's Bedford Branch Railway on the south side thereof and extending between points respectively seven hundred and thirty yards or thereabouts and nine hundred and thirty yards or thereabouts west of the bridge carrying Watling Street over that railway;

Certain lands in the parish of Wolverton in the rural district of Stratford and Wolverton adjoining the Company's London and Birmingham Railway on the west side thereof and extending between points respectively three hundred and sixty yards or thereabouts north and one hundred and seventy-five yards or thereabouts south of the public road leading from Stantonbury to Old Wolverton:

In the county of Warwick—

Certain lands in the urban district of Kenilworth adjoining the Company's Coventry and Leamington Railway on the west side thereof and extending between points respectively fifteen yards or thereabouts and one hundred and seventy yards or thereabouts south of Kenilworth Station;

Certain lands in the borough of Nuneaton adjoining the Company's Trent Valley Railway on the west side thereof and extending for a distance of one hundred and thirty-five yards or thereabouts in a south-easterly direction from the bridge carrying the Whitacre and Nuneaton Branch of the Midland Railway over the Company's Trent Valley Railway;

Also certain other lands in the same borough adjoining the Company's Coventry and Nuneaton Railway on the west side thereof and extending from the northern end of Anker Street in a northerly direction for a distance of three hundred and thirty yards or thereabouts;

Certain lands in the parishes of Foleshill and Exhall in the rural district of Foleshill adjoining the Company's Coventry and Nuneaton Railway on the north-west side thereof and extending between Station Road and the road from Coventry to Bedworth;

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Also certain lands in the said parish of Foleshill in the said rural district adjoining the Company's Longford and Exhall Station on the south side thereof:

In the county of Lancaster—

Certain lands in the urban district of Ince-in-Makerfield lying between and adjoining the Company's Platt Bridge Junction Railway the Company's Eccles Tyldesley and Wigan Railway and Warrington Road;

Certain lands in the county borough of Stockport adjoining the Company's Stockport and Guide Bridge Junction Railway on the east side thereof and extending for a distance of three hundred and sixty yards or thereabouts measured in a northerly direction from the Manchester Road and the Company may in the said county borough make an additional archway or opening on the south-east side of the said railway under the said road and under the occupation road leading from the said road to the Isolation Hospital;

Certain lands in the parish of Speke in the rural district of Whiston adjoining the Company's Garston Warrington and Altrincham Railway on the south side thereof and extending between points respectively seven hundred yards or thereabouts east and three hundred and thirty yards or thereabouts west of Edward's Lane and the Company may in the said parish and rural district make additional archways or openings under Edward's Lane and under the occupation road and public footpath crossing the said railway at a distance of three hundred and thirty yards or thereabouts west of the said lane on the south side of and adjoining the existing archways by which the said railway passes under the said lane and occupation road and for that purpose may alter the levels of and divert in a westerly direction so much of the said lane as extends for a distance of one hundred and fifty yards or thereabouts and of the said occupation road and public footpath as extends for a distance of one hundred yards or thereabouts south of the said railway:

In the county of Flint—

Certain lands in the parish of Holywell Rural in the rural district of Holywell adjoining the Company's

Chester and Holyhead Railway on the north-east side thereof and extending between points respectively twenty yards or thereabouts north-west and forty-five yards or thereabouts south-east of the bridge carrying the disused Holywell Railway over the said Chester and Holyhead Railway and extending in a north-easterly direction three hundred and ten yards or thereabouts from the said last-mentioned railway ;

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Certain lands in the urban district of Holywell adjoining the Company's Holywell Railway authorised by the London and North Western Railway Act 1907 now in course of construction on the south-east side thereof and extending between points respectively one hundred and fifteen yards or thereabouts north-east and one hundred yards or thereabouts south-west of the footpath crossing the said railway near Crescent Factory ;

Also certain other lands in the same urban district adjoining High Street Holywell on the north-east side thereof and adjoining the approach road to the Company's station at Holywell now in course of construction on the south-east side thereof ;

Certain lands in the parish of Whitford in the rural district of Holywell lying between the Company's Chester and Holyhead Railway and the River Dee and extending from the Cop on the north-west side of Llanerch-y-Mor Gutter for a distance of one thousand seven hundred and twenty-five yards or thereabouts in a north-westerly direction :

In the county of Monmouth—

Certain lands in the urban district of Mynyddyslwyn adjoining the Company's Penllwyn Tramway on the south side thereof and extending between points respectively one hundred and fifty-five yards or thereabouts and three hundred and fifteen yards or thereabouts measured along that tramway west of the bridge carrying the said tramway over the Sirhowy River near Duffryn Farm ;

Also certain other lands in the same urban district on the north side of the said tramway extending between points respectively one hundred and twenty-five yards

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or thereabouts and one hundred and thirty-five yards or thereabouts measured along that tramway west of the bridge carrying the said tramway over the Sirhowy River near Duffryn Farm:

In the county of Glamorgan—

Certain lands in the parish of Gowerton in the rural district of Swansea adjoining the Company's Swansea Railway on the west side thereof and extending between points respectively two hundred and seventy yards or thereabouts and four hundred and fifty yards or thereabouts south of the level crossing at Gorseinon Station;

Certain lands in the parish of Llandilo Tal-y-Bont in the rural district of Swansea adjoining the said railway on the east side thereof and extending between points respectively three hundred and ten yards or thereabouts and eight hundred and ninety-five yards or thereabouts north of the said level crossing.

For protection of rural district council of Whiston.

23. For the protection of the rural district council of Whiston (in this section referred to as "the council") the following provisions shall unless otherwise agreed in writing between the council and the Company have effect (that is to say):—

(1) Notwithstanding anything shown on the deposited plans and sections the Company in carrying out the construction of additional archways or openings under Edward's Lane adjoining the Company's Garston Warrington and Altrincham Railway in the parish of Speke in the rural district of Whiston shall widen so much of the said road as may be diverted or the level of which may be altered so as to make the same of a width not less than thirty-six feet except where a less width is necessary for the proper alignment of the widened portion of the road with the existing road and with the road over the additional archway which shall be of a width of twenty-five feet between the parapets:

(2) All works to be executed by the Company under the provisions of this section shall be executed under the superintendence (if given) and to the reasonable satisfaction of the surveyor of the council and in

accordance with plans sections and specifications to be previously submitted to and approved by him
Provided always that if the said surveyor shall for a period of twenty-eight days neglect or refuse to approve such plans sections and specifications he shall be deemed to have approved thereof : A.D. 1912.

- (3) If any difference shall arise between the Company and the council under or in relation to the provisions of this section it shall be referred to an arbitrator appointed failing agreement by the President of the Institution of Civil Engineers and the Arbitration Act 1889 shall apply to any such arbitration.

24. For the protection of Adelaide Watt the tenant for life of the lands known as the Speke Estate in the parish of Speke in the county palatine of Lancaster or other the owner or owners for the time being of the said estate and her and their heirs executors administrators and assigns (all of whom are in this section included in the expression "the owner") the following provisions shall unless otherwise agreed between the owner and the Company have effect (that is to say) :— For protec-
tion of
owners of
Speke
Estate.

- (1) The Company shall not at any time upon the lands in the said parish of Speke adjoining the Company's Garston Warrington and Altrincham Railway on the south side thereof and extending between points respectively seven hundred yards or thereabouts east and three hundred and thirty yards or thereabouts west of Edward's Lane construct or erect factories or workmen's cottages or any other buildings except such as may be necessary for the working of the said railway or the traffic thereon :

- (2) Notwithstanding anything contained in this Act or shown upon the deposited plans and sections the diversion of the occupation road numbered on the deposited plans 8 in the said parish of Speke shall be constructed in the position shown in red on the plan signed in duplicate by the Right Honourable the Earl of Donoughmore the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred one copy whereof has been deposited in the Parliament Office of the House of Lords and the other in the Private Bill Office of the House of Commons.

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For protec-
tion of Barry
Railway
Company.

25. For the protection of the Barry Railway Company (in this section referred to as "the Barry Company") the following provisions shall unless otherwise agreed in writing between the Barry Company and the Company have effect (that is to say):—

(1) Notwithstanding anything contained in this Act or in any Act incorporated therewith the Company shall not enter upon take or use any greater part of the properties respectively numbered on the deposited plan of additional lands at Nine Mile Point 1 and 2 in the urban district of Mynyddyslwyn than the portions of those properties respectively shown within the lines marked on the said plan "limit of property to be purchased":

(2) The Company shall not without the consent of the Barry Company execute upon the said lands any works which would prevent the construction at the level shown on the deposited plans and sections of Railway No. 9 authorised by the Barry Railway Act 1907 at or near the point at which the centre line of the said railway is shown to cross over the said lands.

Powers to
Company and
Lancashire
Company to
make new
road at
Preston.

26. Subject to the provisions of this Act the Company and the Lancashire Company or either of them with the consent of the other may make the new road in the county of Lancaster hereinafter described and may exercise the powers hereinafter mentioned (so far as the same are shown on the deposited plans and sections in the lines and in accordance with the levels shown thereon) and may enter upon take and use such of the lands delineated upon the deposited plans and described in the deposited books of reference relating thereto as may be required for those purposes (that is to say):—

A new road to be situate in the county borough of Preston commencing at the point of junction of Deepdale Mill Street and Porter Street and terminating at the point of junction of Castleton Road and Hawkhurst Road and the Company and the Lancashire Company may stop up and discontinue the level crossing over the joint companies' Preston and Longridge Railway at the east end of Deepdale Station and in lieu thereof may erect a footbridge over the said railway at the said level crossing.

27. The Company and the Lancashire Company and the Preston Corporation may enter into and carry into effect agreements with respect to the works authorised by the section of this Act whereof the marginal note is "Powers to Company and Lancashire Company to make new road at Preston" and the contribution by the said corporation towards the cost thereof and the vesting in the said corporation of all or any part of the lands required therefor.

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 —
 Agreements
 with Preston
 Corporation.

28. The Preston Corporation may from time to time borrow at interest on the security of the district fund and the general district rate of the borough of Preston for the purposes of contributing towards the cost of the works authorised by the section of this Act whereof the marginal note is "Powers to Company and Lancashire Company to make new road at Preston" the sum of five thousand pounds to be repaid within fifty years from the date or dates of borrowing the same:

Power to
 Preston Cor-
 poration to
 borrow.

Provided that in calculating the sum which the Preston Corporation may borrow under the Public Health Act 1875 or any other enactment any sums they may borrow or which are charged upon the district fund and general district rate under or by virtue of this Act shall not be reckoned.

The provisions of sections 27 29 30 and 33 to 38 inclusive of the Preston Corporation Water Act 1904 shall apply mutatis mutandis in regard to moneys borrowed under the provisions of this section.

29. The Company and the Great Western Company or either of them with the consent of the other may enter upon take use and appropriate for the purposes of or connected with their railway the lands in the county of Chester hereinafter described delineated on the deposited plans and described in the deposited books of reference relating thereto (that is to say):—

Power to
 Company
 and Great
 Western
 Company to
 acquire
 lands.

Certain lands in the county borough of Birkenhead on the east side of and adjoining the goods depôt on the Birkenhead Railway of the Company and the Great Western Company at Rock Ferry and extending for a distance of one hundred and thirty yards or thereabouts in a northerly direction from the north end of Queen's Road:

Certain lands in the urban district of Ellesmere Port and Whitby on the north side of and adjoining the Hooton and Helsby Railway of the Company and the Great

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Western Company and extending between points respectively three hundred and twenty-five yards or thereabouts and eight hundred yards or thereabouts west of the level crossing at Ellesmere Port Station :

Also certain other lands in the said urban district on the north side of and adjoining the goods depôt of the Company and the Great Western Company at Ellesmere Port Station and situate between that depôt and Meadow Lane.

Power to
Shropshire
Union Com-
pany to ac-
quire lands.

30. The Shropshire Union Company may enter upon take use and appropriate for the purposes of their undertaking the lands in the county of Chester hereinafter described delineated upon the deposited plans and described in the deposited books of reference relating thereto and may in the lines shown on the deposited plans divert the footpath and exercise the powers following (that is to say):—

Certain lands in the urban district of Ellesmere Port and Whitby on the north-west side of and adjoining land and property belonging to the Shropshire Union Company and known as Grandidge's Creosoting Works :

Certain other lands in the same urban district on the west side of and adjoining the railway and property of the Shropshire Union Company and extending from a point three hundred and sixty yards or thereabouts south-west of the bridge carrying the occupation road from Poole Hall to Merseyton Road over the said railway to the Manchester Ship Canal and the Shropshire Union Company may stop up and divert in a north-westerly direction so much of the public footpath leading from Overpool to Merseyton Road as extends for a distance of one hundred and thirty yards or thereabouts in a south-westerly direction from the said bridge.

Power to de-
viate in con-
struction of
works.

31. In constructing the works by this Act authorised the Company may deviate from the lines of any of the said works shown on the deposited plans thereof to the extent of the limits of deviation marked on the deposited plans and may deviate from the levels of any of the said works (other than the railways) shown on the deposited sections thereof to any extent not exceeding two feet but not so as to increase the rate of inclination of any new or diverted road as shown on the said sections and

may deviate from the levels of the railways shown on the deposited sections in accordance with the provisions of the Railways Clauses Consolidation Act 1845. A.D. 1912.

32. Any road or footpath or portion of road or footpath to be made diverted or altered under the authority of this Act (except the stone iron or other structure carrying any such road or footpath over the railway which structure shall unless otherwise agreed be repaired and maintained by and at the expense of the Company or the Company and the Lancashire Company as the case may be) shall when made and completed from time to time be repaired and maintained by and at the expense of the same parties in the same manner and to the same extent as other roads and footpaths of the same nature within the parishes in which such road or footpath or portion of road or footpath will be situate are from time to time liable to be repaired or maintained.

Provisions as to repair of roads and footpaths.

33. Where this Act authorises the diversion or alteration of a road or footpath or the making of a new road or footpath and the stopping up of an existing road or footpath or portion thereof such stopping up shall not take place until such new road or footpath is completed to the satisfaction of the road authority and is open for public use or in case of difference between the Company and the road authority until two justices shall have certified the new or altered road or footpath has been completed to their satisfaction and is open for public use.

Stopping up roads and footpaths in case of diversion.

Before applying to the justices for their certificate the Company shall give to the road authority of the district in which the existing road or footpath is situate seven days' notice in writing of their intention to apply for the same.

As from the completion to the satisfaction of the road authority of the new road or footpath or as from the date of the said certificate as the case may be all rights of way over or along the existing road or footpath or portion authorised to be stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of road or footpath stopped up as far as the same is bounded on both sides by lands of the Company:

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Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

The provisions of this section shall apply and extend to the exercise of the powers by this Act conferred upon the Company and the Lancashire Company and upon the Shropshire Union Company as if the said companies or company respectively had been inserted therein in lieu of the Company.

As to private rights of way over lands taken compulsorily.

34. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished. Provided that the Company or the Company and the Lancashire Company or the Company and the Great Western Company or the Shropshire Union Company as the case may be shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Period for compulsory purchase of lands.

35. The powers of the Company or the Company and the Lancashire Company or the Company and the Great Western Company or the Shropshire Union Company as the case may be for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Power to owners to grant easements &c.

36. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company or the Company and the Lancashire Company or the Company and the Great Western Company or the Shropshire Union Company as the case may be any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in or over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

37. And whereas in the construction of the railways by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

A.D. 1912.
Owners may be required to sell parts only of certain properties.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:

A.D. 1912.

- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

[2 & 3 GEO. 5.] *London and North Western Railway* [Ch. lxvi.]
Act, 1912.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845. A.D. 1912.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

38. And whereas the Railways Nos. 1 and 2 are shown on the deposited plans and sections as intended to be constructed in tunnel through or under the properties referred to in the Second Schedule to this Act at a depth of forty feet and upwards between the crown of the tunnel and the surface of the ground Therefore the Company may purchase and acquire an easement or right of constructing and using those railways through or under those properties without being obliged to purchase the land over such railways or any houses buildings manufactories or premises thereon respectively unless the jury or the arbitrators or their umpire to whom the question of disputed compensation shall be submitted shall determine that such right or easement cannot be acquired or used by the Company without material detriment to such properties Provided that nothing in this section contained shall apply to any of the said properties the surface of which is at a less height than forty feet above the crown of the said tunnel as the same shall be constructed Provided also that nothing in this section contained nor any dealing with any of the said properties in pursuance thereof shall relieve the Company from liability to compensation under section 68 of the Lands Clauses Consolidation Act 1845 in respect of any properties through or under which the Company may purchase or acquire an easement or right of constructing and using such tunnel. Power to acquire easements for constructing tunnel on railways &c.

39. The period limited by the London and North Western Railway Act 1907 for the completion of Railways No. 5 and No. 6 the Croxley Green Branch the railway at Coventry and the Holywell Railway by that Act authorised is hereby extended for a period of three years from the twenty-sixth day of July one thousand nine hundred and twelve and sections 25 and 26 of the said Act shall be read and construed as if the time limited Extension of time for completion of certain railways.

[Ch. lxvi.] *London and North Western Railway* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. by this Act for the completion of the said railways had been the time limited by the said Act of 1907 for the completion thereof.

If the said railways be not completed within the said period then on the expiration of that period the powers by the said Act of 1907 and this Act respectively granted for making and completing the same shall cease except as to so much thereof respectively as shall then be completed.

Abandonment of
Holywell Curve
authorised by
London and
North Western
Railway Act 1906.

40. The Company may abandon the construction of the Holywell Curve authorised by the London and North Western Railway Act 1906.

Compensa-
tion for
damage to
land by entry
&c. for pur-
poses of rail-
ways
abandoned.

41. The abandonment by the Company under the authority of this Act of any railway or portion of any railway or works shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Company on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out of the line of railway and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Company to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation Act 1845 or the London and North Western Railway Act 1906.

Compensa-
tion to be
made in re-
spect of por-
tions of rail-
ways
abandoned.

42. Where before the passing of this Act any contract has been entered into or notice given by the Company for the purchasing of any land for the purposes of or in relation to any portions of the railways or works authorised to be abandoned by this Act the Company shall be released from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall be made by the Company to the owners and occupiers or other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation paid for lands taken under the provisions thereof.

43. Where the Company have purchased or acquired or may purchase or acquire any lands or any interest in any lands under or through which the railways of the Company are or may be carried in tunnel it shall be lawful for the Company to convey or surrender those lands or any portion of those lands (whether such portion be divided horizontally or vertically from the remainder) or any interest in those lands or portion thereof for such estates for such consideration and upon and subject to such covenants terms and conditions as they may think fit or to let on lease or otherwise dispose of those lands or portion thereof or interest therein for such terms of years and at such rents or for such other consideration and subject to such covenants conditions and stipulations as the Company shall deem expedient.

A.D. 1912.
Sale &c. of
lands over
tunnels.

44. And whereas lands have from time to time been purchased or acquired by the Company but such lands are not immediately required for the purposes of the Company and it is expedient that further powers should be conferred upon the Company with respect to such lands Therefore notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or in any other Act with which that Act is incorporated the Company shall not be required to sell or dispose of any such lands or any lands acquired under the powers of this Act which may not be immediately required for the purposes of the Company but may retain hold or use or may lease or otherwise dispose of the same For the purposes of this section the expression "the Company" means and includes in addition to the Company any joint committee incorporated by Act of Parliament on which the Company may be represented and for the purposes of any land held or enjoyed by the Company jointly with any other company or companies means and includes the Company and such other company or companies.

Power to
lease &c.
lands.

45. And whereas lands have from time to time been purchased or acquired by the Cockermouth Company but such lands are not immediately required for the purposes of the Cockermouth Company and it is expedient that further powers should be conferred upon the Cockermouth Company with respect to such lands Therefore notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or in any other Act with which that Act is incorporated the Cockermouth Company shall not be required to sell or dispose of any such

Power to
Cocker-
mouth Com-
pany to lease
&c. lands.

[Ch. lxvi.] *London and North Western Railway* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. lands but may retain hold or use or may lease or otherwise dispose of the same.

Removal of
stranded or
sunk vessels.

46.—(1) Whenever any vessel is sunk stranded or abandoned in or near the Company's docks or riverside quays or any approaches thereto the Company may cause that vessel to be raised or removed or to be blown up or otherwise destroyed so as to clear such docks riverside quays or approaches therefrom.

(2) The Company may cause any such vessel and any vessel raised or removed by any other authority at the Company's expense and the furniture tackle and apparel thereof or any part thereof respectively which shall be raised or saved and also all or any part of the cargo goods chattels and effects which may be raised or saved from any such vessel to be sold in such manner as they think fit (subject to such notice being given of the intended sale as is prescribed by the first proviso to section 530 of the Merchant Shipping Act 1894) and out of the proceeds of sale may reimburse themselves for the expenses incurred by them under this section or in reimbursing any such other authority as aforesaid and also for any expenses incurred by them in marking buoying watching lighting or otherwise controlling the vessel and shall hold the surplus (if any) of the proceeds of sale in trust for the persons entitled thereto:

Provided always that the Company shall before selling any such cargo goods chattels or effects as aforesaid pay all duties which may be payable to His Majesty in respect to the cargo goods chattels or effects to be sold and they may retain the amount of the duties so paid out of the proceeds arising from the sale of such cargo goods chattels or effects.

(3) If the proceeds of sale are insufficient to reimburse the Company for the aforesaid expenses the Company may recover the deficiency or in case of an appeal under subsection (4) of this section such sum as is awarded by the arbitrator to be payable in respect of the deficiency from the person who at the time of the sinking stranding or abandonment of the vessel was the registered owner of the vessel or from the executors or administrators of such owner as a debt either summarily as a civil debt or in any court of competent jurisdiction.

(4) If on demand being made under this provision for payment of any deficiency the person on whom the demand is made is dissatisfied with the amount demanded he may within

fourteen days after the receipt of the demand appeal to the Board of Trade who shall appoint an arbitrator to determine and award whether any and if any what sum is payable in respect of the deficiency and the award of the arbitrator appointed by the Board of Trade that no sum is payable or as to the sum payable as the case may be shall be conclusive and binding on both parties. The costs of the appeal and the award shall be in the absolute discretion of the arbitrator and he shall award and order how those costs are to be borne and paid and any costs so awarded and ordered to be paid by either party may be recovered by the other party in the same manner as the sum payable in respect of the deficiency is recoverable under subsection (3) of this section. A.D. 1912.

(5) The powers given to the Company by subsection (1) of this section shall not be exercised if the registered owner of the vessel sunk stranded or abandoned shall in the case of a vessel sinking or becoming stranded or abandoned on the entrance sill of any of the Company's docks immediately or in any other case within twenty-four hours after the vessel shall have been stranded or sunk take such steps as may in the opinion of the Company's chief engineer be necessary for the raising or removal of the vessel and shall thenceforth continuously and diligently and to the satisfaction of such chief engineer prosecute and do all such works and things as may in the opinion of such chief engineer be necessary and proper for the raising and removal of the vessel as speedily as possible.

(6) The powers conferred by this section on the Company shall be in addition to and not in substitution for or derogation of any other powers exerciseable by them for or with respect to the removal of wrecks.

(7) Nothing contained in this section shall empower the Company to exercise any powers with respect to any vessel sunk stranded or abandoned in the River Mersey except within the Company's docks situate upon that river.

47. Subject to the conditions hereinafter set forth any two justices having jurisdiction in any one of the counties cities or boroughs in which the constables hereinafter mentioned are to act may on the application of the Company appoint all or so many as they think fit of the persons recommended to them for that purpose by the Company to act as special constables Railway constables.

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Act, 1912.

A.D. 1912. in on and near the whole of the railways stations and works in England and Wales belonging to or worked by the Company either solely or jointly with any other company companies or committee and the following provisions shall apply to every appointment so made:—

- (1) Every person so appointed shall make oath or declaration in due form of law before any justice having jurisdiction in any one of the counties cities or boroughs in which such person is to act duly to execute the office of a constable:
- (2) Every person so appointed and having been sworn or having made declaration as aforesaid shall during the continuance of his appointment have all the powers protection and privileges of a constable in respect of the exercise of his duties and may follow and arrest any person who has departed from any of the said railways stations or works after committing in on or near such railways stations or works any offence for which he might have been arrested while in on or near the said railways stations or works:
- (3) Any two justices assembled and acting together or the Company may dismiss from his office for misconduct or accept the resignation of any constable so appointed and thereupon all powers protection and privileges belonging to such person by virtue of such appointment shall wholly cease. No person so dismissed or resigning shall be capable of being re-appointed except with the consent of the authority by whom he was dismissed:
- (4) The local authorities of any county city or borough shall not be liable for any expense of or be responsible for any acts or defaults of such constables or for anything connected with or consequent upon their appointment and nothing in this Act contained shall restrict or affect the jurisdiction or powers of the respective local authorities of the county city or borough as the case may be or of any police force:
- (5) A constable appointed as aforesaid shall not act as such under the authority of this Act unless he be in uniform or provided with an authority to act as a constable which authority the justice before whom

such constable makes oath or declaration as aforesaid is hereby empowered to grant and if the constable be not in uniform he shall show such authority whenever called upon to do so. A.D. 1912.

48. The Company may raise for the purposes of this Act and any other Act of the present session of Parliament and for the general purposes of their undertaking (being in every case purposes to which capital is properly applicable by the Company) by the creation and issue of shares or stock such capital as they shall think necessary not exceeding eight hundred thousand pounds exclusive of any other capital which they are or may be authorised to raise by this or any other Act or Acts of Parliament and the Company may create and issue such shares or stock either wholly or partially as ordinary or wholly or partially as preferential shares or stock as they may think fit and any preferential stock created under the powers of this Act or of the London and North Western Railway Acts 1902 1904 1905 1906 and 1907 shall be deemed to be part of and shall rank *pari passu* with and shall confer the like privileges and shall bear the same dividend and be subject to the like restrictions as the existing London and North Western Railway four per centum preference stock 1902. Power to Company to raise additional money by creation of shares or stock.

49. The Company shall not issue any share under the authority of this Act of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one-fifth of the amount of such share shall have been paid in respect thereof. Shares of Company not to be issued until one-fifth part thereof shall have been paid up.

50. The capital created by the Company under this Act and the shares or stock therein and the holders thereof respectively (except any capital and the shares or stock therein to which a preferential dividend is attached and the holders of those shares and that stock respectively) shall be subject and entitled to the same powers provisions forfeitures liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing ordinary capital of the Company and those shares and that stock were shares and stock in that ordinary capital. Except as otherwise provided new capital of Company to be subject to same incidents as ordinary capital.

51. Every person who becomes entitled to any shares or stock created by the Company under this Act shall in respect of the same be a holder of shares or stock in the Company and Dividends on new shares or stock of Company.

[Ch. lxvi.] *London and North Western Railway* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. shall be entitled to a dividend either preferential or ordinary as the case may be with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called and paid on such new shares or stock.

Votes and qualifications in respect of new shares or stock of Company.

52. The holders of the shares or stock created by the Company under this Act shall have rights of voting and qualifications in respect thereof on the principle that each sum of one hundred pounds paid up in respect of the shares or stock held by any such holder shall be deemed equivalent to one original share of one hundred pounds in the capital of the Company as prescribed by the *London and North Western Railway (Consolidation) Act 1846* as amended by subsequent Acts:

Provided that no person shall be entitled to vote in respect of any less amount than one hundred pounds paid up:

Provided also that (unless otherwise specified in any resolution of the Company) no person shall be entitled to vote in respect of any share or stock created or issued under this Act to which a preferential dividend shall be assigned.

New shares or stock raised by Company under this Act and any other Act of present session may be of same class.

53. Subject to the provisions of any Act already passed by which the Company are authorised to raise capital by new shares or stock and to the provisions of this Act and any other Act passed in the present session of Parliament whether before or after the passing of this Act by which the Company may be authorised to raise capital by new shares or stock the Company may if they think fit raise by the creation and issue of new shares or stock of one and the same class all or any part of the aggregate capital which they are by such other Act and this Act respectively authorised to raise by the creation and issue of new shares or stock.

Power to Company to borrow.

54. The Company may in respect of the additional capital of eight hundred thousand pounds which they are by this Act authorised to raise borrow on mortgage of their undertaking any sums not exceeding in the whole two hundred and sixty-six thousand six hundred and sixty-six pounds and of that sum they may borrow from time to time not exceeding one hundred and thirty-three thousand three hundred and thirty-three pounds in respect of each four hundred thousand pounds of the said additional capital but no part of either of the said sums of

A.D. 1912.

one hundred and thirty-three thousand three hundred and thirty-three pounds shall be borrowed until shares for so much of the respective portion of the said additional capital in respect of which it is to be borrowed as is to be raised by means of shares are issued and accepted and one-half thereof is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares for the whole of the respective portion of the said capital have been issued and accepted and that one-half thereof has been paid up and that not less than one-fifth part of the amount of each separate share has been paid on account thereof before or at the time of the issue or acceptance thereof and until stock for one-half of so much of the respective portion of such additional capital as is to be raised by means of stock is fully paid up and the Company have proved to such justice as aforesaid before he so certifies that such shares or stock as the case may be were issued and accepted and to the extent aforesaid paid up bona fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and also if the said respective portion of capital is raised by shares that such persons or their executors administrators successors or assigns are legally liable for the same.

Upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which shall be sufficient evidence thereof.

55. Every provision in any Act passed before the present session of Parliament whereby the Company is authorised to raise by borrowing money for the purposes of their undertaking with respect to the appointment of a receiver for enforcing payment by the Company of arrears of interest or principal money or principal money and interest shall be and the same is hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings which may have been commenced prior to the passing of this Act under any such provision.

For appointment of a receiver.

The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears

[Ch. lxvi.] *London and North Western Railway* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. — of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Company
may create
debenture
stock.

56. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock of the Company at any time after the passing of this Act created and issued by the Company shall rank *pari passu* with the interest of all mortgages at any time after the passing of this Act granted by the Company and shall have priority over all principal moneys secured by such mortgages.

Existing
mortgages of
Company to
have priority.

57. All mortgages or bonds granted or to be granted by the Company under the authority of any former Act relating to the Company shall during the continuance thereof and subject to the provisions of the Acts under which such mortgages or bonds were respectively granted have priority over any mortgages granted by the Company by virtue of this Act.

Nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Application
of moneys by
Company.

58. All moneys raised by the Company under this Act whether by shares stock debenture stock or borrowing shall be applied only to the purposes for which they are respectively by this Act authorised to be raised being in every case purposes to which capital is properly applicable.

Receipt to
Company in
case of per-
sons not *sui*
juris.

59. If any money is payable by the Company to a holder of shares or stock in the Company or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Power to
Company to
apply corpo-
rate funds to
purposes of
Act.

60. The Company may apply to any of the purposes of this Act to which capital is properly applicable any of the moneys which they now have in their hands or which they have power to raise by shares stock debenture stock or mortgage by virtue of any Act relating to the Company already passed or to be passed in the present session of Parliament and which may not be required for the purposes to which they are by any such Act made specially applicable.

61. No interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

A.D. 1912.
Interest not
to be paid on
calls paid up.

62. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any Standing Order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

Deposits for
future Bills
not to be paid
out of capital.

63. The Lancashire Company the Great Western Company and the Shropshire Union Company respectively may apply for or towards all or any of the purposes of this Act in which they are respectively interested to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts and which are not required for the purposes to which they are by those Acts made specially applicable.

Power to
other railway
companies to
apply corpo-
rate funds.

64. Nothing in this Act contained shall exempt the Company the Lancashire Company the Great Western Company or the Shropshire Union Company respectively or their respective railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the said companies.

Provision as
to general
Railway
Acts.

65. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever

Crown
rights.

[Ch. lxvi.] *London and North Western Railway* [2 & 3 GEO. 5.]
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A.D. 1912. description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Costs of Act. **66.** All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the foregoing Act. A.D. 1912.

FIRST SCHEDULE.

DESCRIBING PROPERTIES WHEREOF PARTS ONLY ARE REQUIRED
TO BE TAKEN.

Nos. on deposited Plans.	Metropolitan Borough.	Description of Property.
RAILWAY No. 1.		
7	Hampstead - - - -	Garden.
8	" - - - -	Garden.
9	" - - - -	Garden.
10	" - - - -	Garden.
11	" - - - -	Garden.
39	" - - - -	Garden.
40	" - - - -	Garden.
41	" - - - -	Garden.
42	" - - - -	Garden.
43	" - - - -	Garden.
RAILWAY No. 2.		
39	Hampstead - - - -	Garden.
40	" - - - -	Garden.
41	" - - - -	Garden.
42	" - - - -	Garden.
43	" - - - -	Garden.
44	" - - - -	Garden.
45	" - - - -	Garden and greenhouses.

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A.D. 1912.

SECOND SCHEDULE.

**DESCRIBING PROPERTIES UNDER WHICH EASEMENTS MAY BE
TAKEN.**

Nos. on deposited Plans.												Metropolitan Borough.	
RAILWAY No. 2.													
48	50	51	52	53	54	55	56	57	58	59	60	61	Hampstead.
	62	63B	64	65	66	67	68	69	70	71	72	73	
	75	76	77	78	79	80	81	82	83	84	85	87	
	88	89	90	91	92	93	94	95	98.				

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